

CST Cloud Computing Regulatory Framework - Applicability Question

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Status: genuinely ambiguous from public sources alone. Source: HUMAN_CONFIRMATION_NEEDED.md G4
- confirmed via direct fetch of cst.gov.sa's own registration page, not recited from memory.

The question

Does CST's Cloud Computing Regulatory Framework apply to Taweed - a SaaS product that consumes cloud infrastructure (Oracle/AWS) rather than provides it?

What's confirmed, and where the ambiguity is

- CST's own registration criteria state the framework applies to providers who "directly or effectively control the data center or critical infrastructure."
- CST's public pages separately state the framework was "expanded to expressly cover SaaS" - without a clear carve-out distinguishing a SaaS product built on someone else's infrastructure from a SaaS product that itself operates the underlying cloud/data center.
- Taweed does not control any data center or critical infrastructure - it rents compute from Oracle me-riyadh-1 / AWS me-central-2 like any other application.
- This does not block CR formation (already done) - the CR's ISIC economic activity code (620111, Application Development) was deliberately chosen to avoid the 631xxx "provide cloud computing services" category precisely to not trigger this ambiguity at the registration level (HUMAN_CONFIRMATION_NEEDED.md G4). But the CST filing question is separate from the ISIC code and remains genuinely open.

[COUNSEL TO CONFIRM]

1. Does the "expanded to expressly cover SaaS" language actually pull in a SaaS company that has no data-center/infrastructure control, or is that expansion aimed at a different fact pattern (e.g. SaaS providers who also operate their own hosting)?
2. If ambiguous even to counsel, is there a formal CST inquiry/ruling-request channel worth using before GA, rather than guessing?
3. If the framework does apply: what's the actual registration/licensing burden, and does it change any part of the current architecture (which already runs entirely on rented Oracle/AWS infrastructure, no owned data center)?

What to do

Fold into the same counsel engagement as the DPA/SCC work (already scoped as agenda item 6 in docs/counsel-scoping-checklist.pdf) - needs a definitive answer before GA, not resolved by research alone.